NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT- II)

C.P. (CAA)-37/ND/2022

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

BG INDIA ENERGY PRIVATE LIMITED

... Applicant No.1 /Transferor Company

AND

BG INDIA ENERGY SERVICES PRIVATE LIMITED

... Applicant No.2 /Transferor Company

AND

BG LNG REGAS INDIA PRIVATE LIMITED

... Applicant No.3 /Transferor Company

WITH

BG INDIA ENERGY SOLUTIONS PRIVATE LIMITED

... Applicant No.4 /Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 30.05.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

DR. P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)
SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For the Applicant	:	Adv. Tamradhwaj Sharma, Adv. Saurabh Kumar, Adv. Aniket Chartjee
For the OL	:	Adv. Hemlata Rawat

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and for a direction for publication to be effected and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2020.

2. As per the averments, the Registered offices of all the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case record, it is seen that the First Motion seeking direction for dispensing of the meeting of Secured Creditors and Unsecured Creditors and for convening the meeting of the Shareholders of all the Applicant Company was filed before this Tribunal in C.A.(CAA)-60/ND/2021 under Sections 230-232 of the Companies Act, 2013 and vide Order dated 24.08.2021, directions were issued by this Tribunal to

dispense with the meetings of the Secured and Unsecured Creditors of the Applicant Companies and to convene the meetings of the Shareholders of all the Applicant Companies. Accordingly, Chairman of the meeting was appointed and directions were issued to the Chairman to file its report.

4. That accordingly, the Chairman Sh. Kamal Piyush has filed its reports dated 12.03.2022, in respect of each of the Applicant Company stating that the Scheme has been duly approved by the Shareholders of all the Applicant Companies.

5. That the prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential direction in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows :

(i) **The Petition stands Admitted.**

(ii) The date of hearing of the Petition filed by the Applicant Transferor Company for approval of the Scheme is fixed for **25.07.2022**.

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Business Standard" in English and "Jansatta" in Hindi (Delhi edition) in not less than 40 days before the aforesaid date fixed for hearing.

6. In addition to the publication of the above Public Notice, **the Applicant Companies shall individually serve the notices of this Petition to the following Authorities**, namely :

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,

(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(c) Official Liquidator, Delhi

(d) The Income Tax Department,

(e) Jurisdictional Income Tax Authorities,

(f) Reserve Bank of India, and

(g) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme.

at least 40 days before the date fixed for hearing of this Petition.

7. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

8. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Applicant Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

Sd/-

(L. N. GUPTA)
MEMBER (T)

Sd/-

(P.S.N PRASAD)
MEMBER (J)

Since the Hon'ble Judicial Member Dr. P.S.N. Prasad is taking another Court, with his consent, the pronouncement of the Order is made under Rule 151 of the NCLT Rules, 2016 in the open Court today i.e., on 30.05.2022 on behalf of the Bench.

(T. S. Singh) 30.05.2022
Court Officer